

MASTER SERVICES AGREEMENT

This Master Services Agreement (this "Agreement") is entered into and effective as of

[[Date]] (the "Effective Date"), by and between:

"Spice Digital"			
Name:	SPICY VENTURES LLC	Address:	8549 Wilshire Blvd #5062, Beverly Hills, CA 90211

"The Client"			
Name:	[Company Name]	Address:	[Address]

WHEREAS, Company provides technology, marketing, and promotional services specific to the restaurant/food-and-drink industry (the "Services") and, **WHEREAS**, the Client desires that Company provide Services for certain fees.

NOW THEREFORE, in consideration of the mutual covenants contained herein and other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the Parties agree to the following:

ARTICLE I - SCOPE OF WORK

1.1 Scope of Agreement. Company agrees to provide the Client with the Services described in individual Statements of Work ("SOW(s)"). All SOWs shall be in writing, dated, and signed by an authorized agent of the Client (or as otherwise specified herein) and Company. The initial SOW(s) are annexed hereto and incorporated herein by this reference.

ARTICLE II - FEES

2.1 Fees. The Fees for Services will be provided and specified in the SOW(s) (“Fees”). Client represents and warrants that, due to Company’s unique allocation of resources, labor, and costs to provide the Services, as defined in each SOW, Client will be obligated to pay Fees in an amount and time as stated herein. With the exception of the Initial Deposit, payment of fees are due within ten (10) days of Client’s receipt of any Invoice for Fees from Company (“Fees Payment Date”).

2.2 Reimbursements. The Client will reimburse Company for reasonable, out-of-pocket extraordinary expenses incurred by Company that are pre-approved in writing by the Client(including in any SOW) in connection with the performance of the Services to the Client.

2.3 Client’s Failure to Pay Invoiced Fees by Fees Payment Date.

(a) Failure to complete payment on or before the Fees Payment Date shall constitute a material breach of this Agreement (“Payment Breach”). When a Payment Breach occurs, Client understands and agrees that Company shall have the right to collect all Fees due to Company pursuant to the operative SOW (“Fees in Breach”).

2.4 Initial Deposit. Immediately upon execution of this Agreement, in an amount specied in the applicable SOW, Client must pay the initial deposit for services (“Initial Deposit”). The Initial Deposit can be made via ACH Transfer as described below. Client’s acceptance of this Agreement is expressly conditioned on Client making the Initial Deposit.

ARTICLE III - INTELLECTUAL PROPERTY

3.1 Deliverables. Subject to Client’s payment obligations and Section 3.3, Client shall own all rights, title and interests in any deliverable or outcome resulting from the performance of Services created by Company for Client, for which the Client has paid (the “Deliverables”) during the Term of the Agreement. Notwithstanding the foregoing, however, lm negatives and raw footage(“Archival Footage”) created during the course of performing the Services shall be excluded from the Deliverables and are not conveyed herein as well as property identified in Section 3.3. Client grants Company a perpetual, royalty-free, non-exclusive worldwide license to use the Deliverables and to use Client’s name and any trademark or service marks (the “Marks”) in connection with the marketing and promotion of Company’s business and its product and/or service offerings. All such uses of the Deliverables and Marks by Company shall comply with written usage guidelines provided by Client to Company, if any.

ARTICLE IV – REPRESENTATIONS AND WARRANTIES

4.1 Mutual Representations and Warranties. Each Party represents and warrants the other that it:

- a) is duly incorporated and validly existing under the laws of its jurisdiction of incorporation and it has the corporate capacity to enter into this Agreement and to perform each of its obligations hereunder;
- b) and has duly authorized, executed and delivered this Agreement and this Agreement constitutes a legally valid and binding obligation of it enforceable against it in accordance with its terms.

4.2 Company Representations, Warranties, and Disclaimers. Company represents, warrants, disclaims to the Client as follows:

- a) Company will perform its services in a professional manner and in accordance with industry standards;
- b) Company shall employ commercially reasonable standards to ensure that all Deliverables conform with their specifications as set forth in the relevant SOW;
- c) Company disclaims any representation or warranty that any Deliverables shall comply with any applicable Americans with Disabilities Act (“ADA”) requirements such that Client acknowledges and agrees to review any Deliverables with Client’s independent advisors with sufficient understanding and knowledge of the ADA to ensure the Deliverables’ compliance with the ADA requirements.

4.3 Indemnity. Client shall indemnify, defend and hold Company and its affiliates, directors, officers, employees and agents (“affiliates”) harmless against any and all third-party claims against Company and its Aliates of any nature arising from the gross negligence, misrepresentation, or misconduct of Client. Such indemnification shall occur at the commencement of any such third-party action.

ARTICLE V - TERM AND TERMINATION

5.1 Term. This Agreement shall commence as of the Effective Date and shall continue in full force and effect for so long as any SOW between the parties remains in effect. Notwithstanding the foregoing, the rights and obligations set forth in Articles II, III, VI and VII shall continue indefinitely.

ARTICLE VI - CONFIDENTIALITY

6.1 Defined. “Confidential Information” refers to information which is marked confidential or of a nature which should reasonably be expected to be held confidential and includes, without limitation, the contents of this Agreement or the SOW, or information relating in any way to either Party’s business models, policies, procedures, requirements, practices, intellectual property, trade secrets, business relationships, personnel, sales channels, marketing systems and processes, financial advisors, internal capitalization tables, ownership of Parties, equity holders in the Parties, systems, strategies, techniques, technology, sales presentation, pricing, cost and other financial information, marketing plans, forecasts, software, systems, infrastructure, or processes whether obtained before or after the Effective Date, or other information of a similar nature, not generally disclosed to the public, including but not limited to, any information designated by either Party as confidential or that the receiving Party should reasonably understand to be confidential based on the nature of the information or the circumstances of disclosure.

6.2 Agreement Confidential. The terms and conditions of this Agreement will be deemed to be the Confidential Information of each Party and will not be disclosed without the written consent of the other Party unless such Confidential Information is no longer confidential other than by a breach of this Agreement.

ARTICLE VII- RESTRICTIVE COVENANTS

7.1 Non-Disparagement. The Parties shall not, at any time during the Term and for three (3) years after the termination of the Term, make statements, representations, or otherwise communicate, directly or indirectly, in writing, orally, or otherwise, or take any action which may, directly or indirectly, be disparaging, deleterious or damaging (collectively, “disparage”) to the integrity, reputation or good will of any Party, its management, or of the products and services that the Party is in the business of providing. The term “disparage” includes, without limitation, comments or statements to the press, to any Party’s employees or to any individual or entity with whom any Party has a business relationship (including, without limitation, any vendor, supplier, customer or distributor), or any public statement, that in each case is intended to, or can be reasonably expected to, materially damage any of the integrity, reputation or good will of any Party.

ARTICLE VIII – RESTRICTIVE COVENANTS

8.1 Non-Solicitation of Service Provider Employees. The Client acknowledges that information about Spice Digital's employees and contractors is Confidential Information. Accordingly, the Client agrees that during the term of this Agreement and for a period of two (2) years after its termination, Client will not hire or attempt to hire, solicit or otherwise engage any of Spice Digital's employees or contractors or

cause such employees or contractors to discontinue their employment or engagement with Spice Digital. Client acknowledges and agrees that Spice Digital incurs a substantial expense in hiring, training and developing its employees and contractors that it uses to provide Services under this Agreement and any SOWs hereunder. Therefore, In the event that Client breaches this Section, in addition to any other remedies Spice Digital may have at law or in equity, Spice Digital will be entitled to a payment from Client equal to \$50,000 USD for each breach event. Client understands and agrees that this amount represents a reasonable estimate of damages that are difficult to determine related to the loss of human capital, recruitment, and replacement Fees for the hired individual.

8.2 Non-Interference: To the full extent permitted by law, during the Term of this Agreement and for a period of two years following the termination of this Agreement, the Client will not attempt to cause any person or entity which is a client of or has a contractual relationship with Spice Digital during the Term of this Agreement to terminate such relationship with Spice Digital, and this provision shall apply regardless of whether such client has a valid contractual arrangement with Spice Digital.

ARTICLE IX - GENERAL PROVISIONS

9.1 Notices. All notices, requests, directions or other communications hereunder shall be in writing or email and deemed to have been sufficiently given when delivered in person or sent by email or by certified mail, return receipt requested, or courier service to the address of the respective Party as first above provided. Notices pursuant to this section are effective when received by personal delivery, email, certified mail, return receipt requested, or by courier service with a confirmation of delivery. The foregoing notice information may be updated by either Party from time to time upon notice to the other.

9.2 Entire Agreement. This Agreement (including the Exhibits and/or SOWs issued pursuant to hereto and incorporated herein) constitutes the entire understanding and agreement of the parties with respect to the subject matter hereof, and all prior or contemporaneous understanding or agreements, whether oral or written with respect to such subject matter are hereby superseded.

9.3 Assignment. Company may not assign or transfer this Agreement, including without limitation by means of merger, reorganization or other operation of law, or delegate its duties without the prior written consent of the Client, and any attempt to do so without such consent shall be void and of no effect and shall constitute a material breach of this Agreement. This Agreement will only inure to the benefit of permitted successors and assigns.

9.4 Governing Law and Jurisdiction. This Agreement and any SOW hereunder shall be

governed by and construed in accordance with the domestic laws of the State of California,

including California's statutes of limitation periods governing any causes of action accruing

hereunder, and without giving effect to any choice or conflict of law provision or rule (whether of the State of California or any other jurisdiction) that would cause the application of the laws of any jurisdiction other than California, including any other jurisdiction's statutes of limitation. For purposes of any proceeding arising under or with respect to this Agreement and/or any SOWs, the parties submit to the exclusive jurisdiction and venue of the courts of the County of Los Angeles, State of California, and the parties agree not to raise and hereby affirmatively waive any objection to or defense based on the venue of any such court or based upon *forum non conveniens*.

9.5 Counterparts. This Agreement and any SOW hereunder may be executed by each of the parties hereto in separate counterparts, and electronically, each of which shall be deemed to be an original and both of which taken together shall constitute one and the same Agreement.

9.6 Severability. In the event that any provision of this Agreement and/or any SOW hereunder conflicts with governing law or if any provision is held to be null, void or otherwise ineffective or invalid by a court of competent jurisdiction, (i) such provision shall be modified to the least extent necessary to render them valid and consistent with the parties' intent, and (ii) the remaining terms and provisions of this Agreement shall remain in full force and effect.

9.7 Attorney's Fees & Costs. Spice Digital shall be entitled to recover reasonable attorney's fees and costs in conjunction with any successful action brought to enforce or interpret any right or provision of this Agreement

9.8 Electronic Signatures and Circulation. This Agreement and any SOW hereunder may be signed in counterparts, and electronic signatures of the Parties (such as via Agree.com or PandaDoc), scans, copies, PDFs, and facsimiles shall be deemed as originals.

REMAINDER OF PAGE LEFT INTENTIONALLY BLANK AS SIGNATURE PAGE FOLLOWS

WITNESS WHEREOF, the Parties hereto have executed this Agreement:

Spice Digital	Client
[Signature]	[Signature]
Name: Maxx Freedman	Name: [Name]
Title: CEO	Title: [Title]
Date: [Date]	Date: [Date]